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PRIVILEGED & CONFIDENTIAL — LEGAL ADVICE

19 December 2025

The Board of Directors Penrose Robotics Limited Helmsman House, 4 Kingsway Park, Cambridge CB4 0WS

Dear Directors

Project Northwind — Freedom-to-Operate and IP Due-Diligence Review (Helmsman platform)

1. Introduction and scope

You have asked us to carry out a confirmatory freedom-to-operate (FTO) and intellectual property due-diligence review in connection with the proposed licence of the Helmsman autonomous navigation and fleet-orchestration platform to Wexbourne Retail Group Limited. This note summarises our findings. It is addressed to the board, is subject to legal professional privilege, and may not be disclosed to or relied upon by any third party (including Wexbourne) without our prior written consent. It is given as at its date and on the basis of the materials listed in the Appendix.

2. Ownership of the licensed rights

We have reviewed the Company's patent portfolio, assignment records and developer IP-assignment agreements. Subject to the points in paragraph 4 below, we are satisfied that the Company is the registered proprietor or applicant of each of the patents and applications listed in Schedule 1 to the draft licence, and that the copyright and other rights in the Helmsman source code vest in the Company. All current and former engineers engaged on the platform are party to written assignments of IPR in favour of the Company, save for two early contractors discussed in paragraph 4.

3. Freedom to operate

We instructed Hartington IP (patent attorneys) to carry out searches of granted patents and pending applications in the United Kingdom, the EPO and the United States in the field of autonomous mobile robot navigation, multi-robot traffic management and warehouse perception. The searches identified a number of third-party patents, of which three warranted closer analysis:

(a) a granted EP patent held by a German intralogistics OEM relating to lane-based traffic control in fixed-path systems. We consider the risk of infringement to be low: Helmsman uses decentralised, free-roaming traffic negotiation that falls outside the claims, which are directed to centrally scheduled fixed guide-paths;

(b) a US patent relating to LiDAR-based human detection. The Helmsman Perceive module uses a sensor-fusion approach (LiDAR plus stereo vision plus a learned classifier) which, on Hartington IP's analysis, does not read on the asserted claims; and

(c) a pending GB application for adaptive charging scheduling which overlaps in subject-matter with the Company's own pending application (Schedule 1, item 4). We recommend monitoring its prosecution; it has not yet been granted and the Company has an earlier priority date for the relevant features.

On the basis of those searches and analyses, we are of the opinion that the use of the Helmsman platform in the Field as contemplated by the licence carries a low risk of infringing valid and enforceable third-party patent rights, such that the third-party IP infringement warranty and indemnity in the draft licence can properly be given, subject to the agreed cap on liability.

4. Points to note and recommendations

We draw the following to the board's attention: (i) the IP assignments of two early-stage contractors (engaged in 2019) could not be located; we recommend obtaining confirmatory assignments before completion, and have prepared short-form deeds for that purpose; (ii) one open-source component (a path-planning library under a permissive MIT licence) is incorporated in the Helmsman Navigate module — its licence terms are compatible with the proposed licensing model but the attribution notice should be included in the Documentation; and (iii) the pending GB application (Schedule 1, item 4) should be progressed to grant to strengthen the Company's position in adaptive charging.

5. Conclusion

Subject to the recommendations in paragraph 4, we are satisfied that the Company has good title to the rights it proposes to license and that the FTO position supports the warranties and indemnity in the draft licence. We are happy to discuss any aspect of this note with the board.

Yours faithfully

Whitfield Carter LLP

Appendix — Materials reviewed

1. Draft Patent and Software Licence Agreement (v3) and Schedules. 2. Company patent schedule and Intellectual Property Office register extracts. 3. Developer and contractor IP-assignment agreements. 4. Hartington IP search report dated 12 December 2025. 5. Helmsman platform architecture overview and open-source component inventory.